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Louisiana vs. Callais Deliberation

In 2024, the state of Louisiana created a new congressional map, SB8, in order to rectify a violation of Section 2 of the Voting Rights Act resulting from the previous congressional map, adopted in 2022. The 2022 map created a single majority-Black district in the state, despite around one-third of its population being Black—Section 2 of the VRA protects minorities' voting power from being diluted by how districts are drawn. In line with these violation concerns, SB8 created a second majority-Black district, but some are now arguing that this new map is itself a racial gerrymander, and in violation of the 14th amendment's equal protection clause, and the 15th amendment's protection against the government using race as a basis to impede peoples' voting rights. This case, *Louisiana vs. Callais*, is now before the Supreme Court with the main question of "Does Louisiana's intentional creation of a second majority-minority congressional district violate the 14th or 15th Amendments to the U.S. Constitution?" and is closely examining how the law may be allowed to consider race in order to enforce fair representation in our voting system.

In favor of SB8 are the Appellants, asserting in their brief that the state's creation of the 2024 map is not unconstitutional, and basing their argument around how the new district is doing exactly what the VRA was created for: protecting the voting rights of the Black population in Louisiana. The Appellants make a point to stress the still existing prejudice towards Black people as an important reason such protection needs to be enacted, and detail why the situation at hand calls for the enforcement of Section 2, noting the undeniable issues the 2022 map caused as a key reason for the creation of SB8. This stance sees them firmly denying the district's alleged violation of the 14th and 15th amendments outright, saying that the creation of SB8

“...comported with the Fourteenth and Fifteenth Amendment guarantees of equal voting rights and the VRA’s requirements,” and that the state’s recognition of race in their actions were a measure necessary to upholding the fairness in voting guaranteed by those very amendments (Supplemental Brief for Appellants, 1).

On the other hand, the Appellees are strongly arguing *for* SB8’s unconstitutionality, focusing on how having such a legislative action taken primarily because of considerations of race cannot be allowed to stand, as it constitutes a discriminatory act on the state’s part, which, in this case, supposedly dilutes the power of the non-Black population in Louisiana. With this logic, they claim that the district’s creation is in violation of the 14th and 15th amendments to the Constitution, and attack Section 2 of the VRA as something that enables this discrimination. The Appellees also push back against the Appellants’ point about existing discrimination towards the Black population in Louisiana being worthy justification for SB8’s creation as a response to Section 2 being violated, saying in their brief that “Appellants adduced zero evidence at trial—and can cite nothing in the legislative record—even beginning to discuss voting discrimination in Louisiana in 2024” (Supplemental Brief for Appellees, 34). The Appellees make frequent use of this kind of argument, calling out the Appellants’ lack of proof regarding their position of SB8’s racial motivation not being severe to the point of discrimination, and use that lack of proof to ground their own stance of said racial motivation itself being evidence of a discriminatory move.

For me, the Appellants’ side is more compelling, and so I agree with them that SB8’s creation is not in violation of the 14th or 15th amendments, and that the consideration of race behind it is not enough to deem it an act of discrimination against Louisiana’s non-Black population. I’m swayed in large part by the interpretation they offer of how the 14th and 15th

amendments apply to the issue in Louisiana, which feels particularly sound considering how they present the constitutionality of Section 2, with its roots in “...decades of precedent that have successfully constrained the use of race for remedial purposes to proven instances of ongoing racial discrimination,” and SB8 as a means of combatting said discrimination:

Without §2, jurisdictions could simply eliminate minority opportunity districts even where they remain necessary for voters of color to have any opportunity to elect candidates of choice, wiping out minority representation and re-segregating legislatures, city councils, and school boards... And voters of color would once again be shut out of policy-making that affects their everyday lives. Protecting against this outcome is §2’s role and was Congress’s purpose in adopting it (Appellants, 34, 35).

Establishing the importance of race-conscious legal actions to remedy instances of existing discrimination allows the Appellants to refute the Appellees’ claim that SB8’s creation was an act of discrimination towards Louisiana’s non-Black population, and this argument is further supported when they speak on how the 2022 map was definitively discriminatory towards the state’s Black voting population. The Appellants cite precedent and history to show that taking race-conscious actions in order to protect equality and representation is historically constitutionally approved; that is the reason behind the existence of the VRA and Section 2, and even the 14th and 15th amendments themselves. This cements their position as one defending the creation of SB8 as an action taken within the allowances of the Constitution with the primary reason of protecting one populations’ rights over one taken to dilute the voting power of another.

In this vein, where the Appellees' argument especially falls flat for me is when they attempt to discount the Appellants' claims of present-day discrimination being justification for SB8. Though their desire for more concrete evidence of intentional, ongoing racial discrimination may be legally sound given the lack of a factual record around some of the Appellants' claims, as a person living in the United States, it is a lot more plausible for me to believe that racial prejudice is still an issue, rather than something solved, despite not having seen it for myself in Louisiana. And while the Appellees heavily use that lack of evidence as part of their attack, they also do scant little to prove the opposite, pushing the responsibility of proof onto the Appellants, even though they raised the issue in the first place. Their own claims of Section 2's unconstitutionality fail here too, with the Appellants addressing the Appellees concerns about how its race-consciousness could be manipulated to enact discriminatory actions such as racial gerrymandering through their (the Appellants') recognition of the stringent regulations surrounding it, which limit its use to cases wherein there is evident existing discrimination to be acted against (Appellants, 31).

That said, the Appellees' side has one glaring strength: that SB8 does look very much like a racial gerrymander. The district itself is by definition serpentine—diagonally winding across nearly the whole of the state—and, knowing that its creation was heavily race-conscious, the fact that it created a second majority-minority district becomes a seemingly valid concern for anyone taking a cursory look at the situation. The Appellants may successfully argue for the justification behind the drawing of the 2024 map, but there is no disputing that it resulted in a decidedly not-compact district that also increased the voting power of a specific racial population, which does in part justify any attack directed towards it, for fear that it is the result of an otherwise baseless racially motivated action, and so discriminatory and unconstitutional. But

even if this is an understandable critique of the map, it is ultimately facile and does not take into account the rest of the points the Appellants bring up in its favor—namely that it, again, was created in light of existing discrimination as a remedy, and that this kind of race-consciousness is more in line with the 14th and 15th amendments than not.

While the Appellees push that the the 14th and 15th amendments should be “color-blind” to accomplish their purposes of opposing racial discrimination, it is important to note that they are functionally *not* color-blind, as the protections offered by both necessitate an acknowledgement of race in the issues they are meant to solve and prevent. Being designed to enforce the VRA and prevent the unfair vote dilution of Black voters in Louisiana, SB8 as a solution needs to be race-conscious, and so the Appellees insistence on it being discriminatory due to said race-consciousness loses a fair bit of weight. The Appellants address the Appellees’ claims of the map diluting non-Black Louisianian’s voting power as well:

As a result, under the 2022 map, White Louisianians were dramatically overrepresented—holding majorities in 83% of the State’s congressional districts, *id.* at 851, despite being a mere 56% of the State’s total population, *id.* at 779. And they remain greatly overrepresented even under SB8 (Appellants, 42).

In providing this statistic about specific populations’ voting power under both 2022 and 2024 maps, the Appellants show that the Appellees’ focus on the creation of SB8 diluting non-Black voters’ voting power is somewhat overblown, while also strengthening their own side with a soft example of how Black voters in the state *were* being discriminated against under the 2022 map. The last line is by itself very effective in shooting down the Appellees’ arguments

concerning SB8 being discriminatory towards the non-Black voters in Louisiana—SB8 by no means overturns the voting power of said voters, and, even with the Constitution not guaranteeing proportionality, it is clear that the 2024 map was drawn in order to amend discrimination rather than to perpetuate it. Looking again at the Appellees’ insistence on the whole of this process being unconstitutional because of its innate race-consciousness, the evidence of the 2022 map’s unfairness the Appellants present in their argument lays out exactly why being race-conscious is critical to recognizing and dealing with discrimination, and not necessarily intrinsically prejudicial itself. If taking such statistics into account—and one directly concerning voting power due to districting no less—constitutes being race-conscious, then the importance of doing so becomes immediately evident: there is no way to deal with issues without first seeing them, and so labeling that “seeing” itself as an issue is an obstruction to positive change.

Also in the Appellants favor is the fact that, while they argue to justify the 2024 redistricting as a remedy to the unfair 2022 map, the bulk of the Appellees’ argument centers on claiming the 2024 map is unconstitutional, and not giving due attention to the circumstances that led to its creation—they continuously assert that the Appellants are in the wrong without bringing external substance to the argument, and, notably, do not offer any real solutions to the situation. Despite spending most of their brief harping on how SB8 cannot stand, the Appellees do not propose a map of their own, and just double down on the supposed error of the Appellants’ race-consciousness as entirely eclipsing the merit of trying to combat ongoing discrimination; even in a section recognizing the discrimination the Appellants say their addressing, they contend that SB8 “...would only remedy discrimination through discrimination,” and never really get around to what should be done instead (Appellees, 46). The direction they

take here is weak, since, in trying to push this “paradox of tolerance” sort of logic, the Appellees misrepresent, and, to me, mis-weigh how prejudice, and racism specifically, exists, both now and in history, in order to achieve their ends of proving the Appellants wrong. The Appellees make to deem race-consciousness on the Appellants’ part a sort of intolerance that they are leveraging to their ends, but, in reality, race-consciousness is simply the act of seeing and acknowledging intolerance, and, once again, not a form of intolerance itself.

When beginning this deliberation, I on some level knew where I would stand, despite having no grasp on the specific arguments at play. After reading each brief at length, the strengths and faults of each side became more apparent, and I was surprised at how solid the Appellees’ stance seemed—but because of this fact, that both sides felt well-structured, I began to understand why exactly I personally was not persuaded by them. The reason the Appellees are able to raise standing arguments within the rules of our legal system in spite of the soundness of the Appellants’ side points to a kind of legality-enabled moral blindness—with a political goal in mind, they are able to work within the law to try and upend what is, to me, plainly well-intentioned legislation; the term “rules lawyer” comes to mind, though I do not mean to assume anything about the Appellees’ intent, just to point out that their goal looks to be more about stopping the Appellants’ “unconstitutional” handling of discrimination than actually addressing the bigger issue of that discrimination. This case was very enlightening for me in terms of learning how these sorts of disputes can exist in our legal system, and, though I still do not have a head for law, I would like to see it refined to where legality is more clear-cut regarding constitutionality, so future cases in this vein give less leeway to those who may look to find issues of constitutionality for other ends.

Works Cited

Louisiana v. Callais, No. 24-109 (2025), Supplemental Brief for Appellants. Available at

<https://www.scotusblog.com/cases/case-files/louisiana-v-callais-2/> .

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